

25STCV18248 25STCV18248

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-25
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Case Number: 25STCV18248 Hearing Date: August 25, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RICARDO QUEZADA,

Plaintiff,

vs.

GENERAL MOTORS, LLC,

Defendant.

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CASE NO.: 25STCV18248

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL
DEPOSITION

Dept. 506

8:30 a.m.

August 25, 2026

On June 24, 2025, Plaintiff Ricardo Quezada filed this
Song-Beverly action against Defendant General Motors, LLC.

On
July 20, 2026, Defendant filed a motion to compel Plaintiff's initial deposition
under Code of Civil Procedure section 871.26, subdivision (c)(1).

Plaintiff
objected to Defendant scheduling his deposition on January 9, 2026 and May 26, 2026,
and he failed to appear for his May 26, 2026 deposition. (Stark Decl. ¶¶ 5-6, 9-10.) The statutory deadline to conduct the
deposition
of Plaintiff was March 13, 2026. (Stark Decl.
¶ 11; see Code Civ. Proc., § 871.26, subd. (c)(1).)

Plaintiff
contends that the motion is now moot because Plaintiff's deposition is confirmed
for August 31, 2026. (Smith Decl. ¶ 13.) Given Plaintiff's prior failures to appear, his
agreement to a future date does not moot the motion.

The
motion to compel deposition is GRANTED. Plaintiff
is ordered to appear for his August 31, 2026 deposition.

Defendant's
request for mandatory sanctions is also GRANTED. Plaintiff's counsel is ORDERED to pay total sanctions
of \$1,500.00 to Defendant within 15 business days. (See Code Civ. Proc, § 871.26, subd. (j)(2).)

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 25th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court